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UNITED STATES *v.* HEMANI

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FIFTH CIRCUIT

No. 24–1234. Argued March 2, 2026—Decided June 18, 2026

Ali Hemani is a dual citizen of the United States and Pakistan who was born in Texas. He has spent most of his life living in the Dallas area with his parents and working a stable job. Suspecting Mr. Hemani and his family members of terrorism-related activities, the government conducted a search of the family home in 2022. Throughout the process, Mr. Hemani proved cooperative: he surrendered a gun he kept in the house, pointed agents to some marijuana on the property, and consented to an interview during which he told law enforcement agents that he used marijuana about every other day. More than six months after the search, and relying solely on Mr. Hemani's admitted use of marijuana, the government prosecuted Mr. Hemani under 18 U. S. C. § 922(g)(3) for knowingly possessing a gun in his home while being an unlawful user of a controlled substance. Mr. Hemani moved to dismiss the indictment, arguing that the government's effort to enforce § 922(g)(3) against him violated the Second Amendment. The district court granted the motion, and after an unsuccessful appeal to the Fifth Circuit, the government asked this Court to review the case.

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Held: The government's prosecution of Mr. Hemani under § 922(g)(3)'s unlawful user provision is inconsistent with the Second Amendment. Pp. 779–795.

(a) The Second Amendment protects the right of "all Americans" to keep and bear firearms for self-defense, *District of Columbia* v. *Heller*, 554 U. S. 570, 581, though like most individual rights it has its limits, *id.*, at 626. To determine when the government infringes the Second Amendment, the Court begins by asking whether the Amendment's terms cover the conduct in question; if so, the Constitution "presumptively" protects it. *New York State Rifle & Pistol Assn., Inc.* v. *Bruen*, 597 U. S. 1, 24. To overcome that presumption, the government bears the burden of showing its regulatory efforts are "consistent with the Nation's historical tradition of firearm regulation." *Ibid.* The government need not point to a "historical twin" or "precis[e] . . . historical precursors." *United States* v. *Rahimi*, 602 U. S. 680, 692 (internal quotation marks omitted). Instead, "the appropriate analysis involves considering whether the challenged regulation is consistent with the principles that underpin our regulatory tradition," *ibid.*, and the government

may "reaso[n] by analogy," showing that its contemporary regulation is "relevantly similar" to ones "well-established" in the Nation's history. *Bruen*, 597 U. S., at 28–30. Two features play a "'central'" role in determining whether a modern law is "relevantly similar" to historical ones: the "why" and the "how"—the more closely a contemporary law mirrors a well-established historical analogue in purpose and operation, the more likely it is to be upheld. *Id.*, at 29.

The government accepts this framework and agrees that § 922(g)(3)'s unlawful user provision burdens conduct presumptively protected by the Second Amendment because the statute bans a class of people, including Mr. Hemani, from possessing essentially any firearm for any purpose. The government construes § 922(g)(3) to automatically ban an individual from possessing a gun from the moment he becomes an unlawful user of any controlled substance and remains in effect until he ceases being one, regardless of what controlled substance an individual uses, in what amounts, whether his drug use has ever made him a danger to himself or others, why he keeps a gun, or how safely he does so. The government analogizes its construction of § 922(g)(3) to what it calls "habitual drunkard" laws, which it submits enjoy deep roots in the country's history and are "relevantly similar" to the regulation it wishes to enforce. *Id.*, at 29. These habitual drunkard laws fall into three general categories: vagrancy laws that allowed habitual drunkards to be confined in workhouses or jailed; civil-commitment statutes that allowed courts to appoint guardians for habitual drunkards or authorized their commitment to asylums; and surety laws under which judicial officers could compel habitual drunkards to post surety bonds to ensure their good behavior. Pp. 779–783.

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(b) The government's analogy fails on every metric it invites the Court to consider. Taken cumulatively, these problems prove fatal to the government's prosecution of Mr. Hemani. Pp. 783–794.

(1) The government's claim that historical laws targeted habitual drunkards for the same reason § 922(g)(3) targets unlawful users—because they regularly use intoxicants—is difficult to square with the historical record. Around the time of the founding and for decades following it, a habitual drunkard was generally someone who "for any considerable part of his time [was] intoxicated to such a degree as to deprive him of his ordinary reasoning faculties," *In re Tracy*, 1 Paige Ch. 580, 582–583 (N. Y. Ch.); a regular or even frequent drinker did not usually fit the bill. Many statutes defined the term to require that someone drink to such excess that he was "incapable of conducting [his] own affairs," Ark. Rev. Stat., ch. 78, § 1; "mentally incompetent," Minn. Terr. Rev. Stat., ch. 67, § 12; or had "lost the power of self-control," 1874 Conn. Pub. Acts 256. Given the "culture of copious drinking" in early

America, 43 Law & Hist. Rev. 795, 800, historical laws targeted habitual drunkards not merely because they regularly used intoxicants, but because their drinking rendered them practically incapacitated and incapable of managing their affairs. By contrast, on the government's account, § 922(g)(3) automatically disarms anyone who regularly uses any amount of any controlled substance for anything other than its prescribed purpose, without requiring a showing that a particular individual is regularly incapacitated, incapable of conducting his affairs, or a threat to himself or others. Pp. 783–787.

(2) The government's claim that § 922(g)(3) disarms unlawful drug users to protect the public from unusually dangerous individuals who will commit violent crimes, and that historical laws share a similar purpose, misapprehends the purposes animating those historical analogues. Vagrancy laws usually targeted those who "did not meet the societal expectation of work," 31 U. Rich. L. Rev. 111, 169, and sought to promote productivity and suppress various vices, not to protect the public from a category of unusually dangerous persons. Civil-commitment laws, by their own terms, generally did not seek to protect the public from violence so much as to protect habitual drunkards from themselves and to protect their families from financial devastation. And the surety-of-good-behavior laws the government invokes did not normally require a showing that an individual posed a threat of violence; instead, they sought to protect the community from scandals "against good morals," 5 N. Dane, A General Abridgment and Digest of American Law 301 (emphasis deleted). Pp. 787–790.

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(3) The way habitual drunkard statutes worked in the past differs significantly from how § 922(g)(3)'s unlawful user provision works today. The historical laws the government identifies usually provided some form of process before an individual lost any of his liberties, even temporarily: a vagrant could be sent to a workhouse or jail generally only upon a conviction; a habitual drunkard could be assigned a guardian or committed to an asylum usually only after proceedings before something like a probate court; and surety statutes typically required a proceeding before a justice of the peace or a comparable officer before a bond could be ordered. By contrast, on the government's account, § 922(g)(3) automatically divests an individual of his constitutional right to bear arms the moment he becomes an unlawful user and until he ends his drug use—all without any pre-deprivation process. Pp. 790–791.

(4) There are reasons to doubt that the government has established § 922(g)(3) even serves the purpose the government claims, of disarming categorically violent and unusually dangerous persons. Section 922(g)(3)'s reliance on the Controlled Substances Act—a statute adopted to protect "the health and general welfare of the American people," 21

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U. S. C. § 801(2), and under which drugs can be added to schedules for reasons having little or nothing to do with their potential to induce violence—makes it far from obvious that 18 U. S. C. § 922(g)(3) confines its reach to those who are categorically and unusually dangerous. Additionally, the government's own regulatory actions undercut its position: the Department of Justice has directed federal prosecutors to curtail enforcement efforts against marijuana users, most States have legalized marijuana use to some degree, and the government recently moved some marijuana products from Schedule I to Schedule III, 91 Fed. Reg. 22714. Affording the government "broad power to designate any group as dangerous and thereby disqualify its members from having a gun" would risk allowing it to "quickly swallow" the Second Amendment. *Kanter* v. *Barr*, 919 F. 3d 437, 465 (Barrett, J., dissenting). Pp. 791–794.

(c) The Court's decision is narrow. It does not address efforts to ban addicts or those presently intoxicated from possessing a firearm; other prophylactic laws Congress might adopt after determining that users of a particular drug pose a special risk of misusing firearms; § 922(g)(1)'s provision disarming individuals convicted of felonies; or whether the government could bring a prosecution under § 922(g)(3) accompanied by individualized proof that the defendant's drug use renders him a danger to himself or others, or proof that a certain drug always renders its users dangerous. Pp. 794–795.

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Affirmed.

GORSUCH, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, SOTOMAYOR, KAVANAUGH, BARRETT, and JACKSON, JJ., joined. THOMAS, J., filed a concurring opinion, *post*, p. 795. JACKSON, J., filed a concurring opinion, in which SOTOMAYOR, J., joined, *post*, p. 802. ALITO, J., filed an opinion concurring in the judgment, in which KAGAN, J., joined, *post*, p. 806.

Principal Deputy Solicitor General Harris argued the cause for the United States. With her on the briefs were *Solicitor General Sauer*, *Acting Assistant Attorney General Galeotti*, *Vivek Suri*, *Max E. Schulman*, and *William A. Glaser*.

Erin E. Murphy argued the cause for respondent. With her on the brief were *Naz Ahmad*, *Zachary L. Newland*, *Matthew D. Rowen*, *Nicholas A. Aquart*, *Mitchell K. Pallaki*, *Evelyn R. Danforth-Scott*, *Cecillia D. Wang*, *Arijeet*

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*Briefs of *amici curiae* urging reversal were filed for the State of Illinois et al. by *Kwame Raoul*, Attorney General of Illinois, *Jane Elinor Notz*, Solicitor General, *Sarah A Hunger*, Deputy Solicitor General, and *Megan L. Brown* and *Brianna Yang*, Assistant Attorneys General, by *Brian L. Schwalb*, Attorney General of the District of Columbia, *Caroline S. Van Zile*, Solicitor General, *Ashwin P. Phatak*, Principal Deputy Solicitor General, and *Perry Cao*, Assistant Attorney General, and by the Attorneys General for their respective States as follows: *Rob Bonta* of California, *Philip J. Weiser* of Colorado, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Anne E. Lopez* of Hawaii, *Aaron M. Frey* of Maine, *Anthony G. Brown* of Maryland, *Andrea Joy Campbell* of Massachusetts, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Aaron D. Ford* of Nevada, *Matthew J. Platkin* of New Jersey, *Letitia James* of New York, *Dave Yost* of Ohio, *Dan Rayfield* of Oregon, *Peter F. Neronha* of Rhode Island, *Charity R. Clark* of Vermont, and *Nicholas W. Brown* of Washington; for the Brady Center to Prevent Gun Violence et al. by *Douglas N. Letter*, *Shira Lauren Feldman*, *J. Adam Skaggs*, *Leigh Rome*, *Kathleen R. Hartnett*, and *Carlton Forbes*; for Everytown for Gun Safety by *Janet Carter*, *William J. Taylor, Jr.*, and *Priyanka Gupta Sen*; for History and Law Professors by *Charles A. Rothfeld* and *Eugene R. Fidell*; and for Second Amendment Law Scholars by *Gregg Costa*, *Lee R. Crain*, and *Benjamin A. Rice*.

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JUSTICE GORSUCH delivered the opinion of the Court.

Ali Hemani uses marijuana a few times a week. That fact alone, the government says, means he is automatically banned from possessing a firearm under federal law. And because Mr. Hemani admits he owns a gun despite this ban, the government now seeks to prosecute him, imprison him for up to 15 years, and disarm him for life. This case poses the question whether the government's prosecution of Mr. Hemani is consistent with the Second Amendment.

I

The federal Gun Control Act prohibits various categories of people from possessing guns. These categories, listed in 18 U. S. C. § 922(g), include individuals convicted of crimes "punishable by imprisonment for a term exceeding one year," § 922(g)(1), fugitives from justice, § 922(g)(2), and those convicted of domestic violence crimes, § 922(g)(9). This case concerns another of the statute's provisions—§ 922(g)(3). Under its terms, anyone who is an "unlawful user of" or "addicted to" a "controlled substance" is automatically banned from possessing a gun. And for defying this ban, an individual can face up to 15 years in federal prison, § 924(a)(8), and disarmament for life, § 922(g)(1).[1]

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To define the term "controlled substance," § 922(g)(3) relies on the Controlled Substances Act (CSA). Enacted to protect "the health and general welfare of the American peo-

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Biazzo, pro se; for *Joel S. Johnson, pro se*; and for *William R. Weinstein, pro se.*

Briefs of *amici curiae* were filed for the Cato Institute et al. by *Matthew P. Cavedon*; for Global Action on Gun Violence by *Adam B. Banks* and *Jonathan E. Lowy*; and for Smart Approaches to Marijuana et al. by *David Geoffrey Evans.*

[1] Because Congress adopted § 922(g) pursuant to the Commerce Clause, the statute requires the government to show that a firearm possessed in violation of the statute's terms "has been shipped or transported in interstate or foreign commerce." As that element is not in dispute here, we do not discuss it further.